

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER				PAGE 1 OF 14													
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 140A2326Q0134												
6. SOLICITATION ISSUE DATE 05/05/2026		7. FOR SOLICITATION INFORMATION CALL: a. NAME Leah Azure															
b. TELEPHONE NUMBER (No collect calls) (505) 803-4256		8. OFFER DUE DATE/ LOCAL TIME 05/14/2026 1300 MD															
9. ISSUED BY Indian Education Acquisition Office 1011 Indian School Rd. Suite 352A Albuquerque NM 87104			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00% FOR: ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED ☐ VETERAN-OWNED ☐ SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 324110 SIZE STANDARD: 1,500														
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)													
13b. RATING		14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)															
15. DELIVER TO See Schedule			16. ADMINISTERED BY See Schedule														
17a. CONTRACTOR/ OFFEROR			18a. PAYMENT WILL BE MADE BY														
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM														
<table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th style="width: 10%;">19. ITEM NO.</th> <th style="width: 50%;">20. SCHEDULE OF SUPPLIES/SERVICES</th> <th style="width: 10%;">21. QUANTITY</th> <th style="width: 10%;">22. UNIT</th> <th style="width: 10%;">23. UNIT PRICE</th> <th style="width: 10%;">24. AMOUNT</th> </tr> </thead> <tbody> <tr> <td></td> <td> ADMINISTERED BY: Indian Education Acquisition Office 1011 Indian School Rd. Suite 352A Albuquerque NM 87104 US <i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i> </td> <td></td> <td></td> <td></td> <td></td> </tr> </tbody> </table>						19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT		ADMINISTERED BY: Indian Education Acquisition Office 1011 Indian School Rd. Suite 352A Albuquerque NM 87104 US <i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i>				
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25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)													
27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ☐ ARE ☐ ARE NOT ATTACHED 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED																	
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED: _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:														
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)														
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print) Leah Azure		31c. DATE SIGNED												

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____32b. SIGNATURE OF AUTHORIZED GOVERNMENT
REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT
REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY *(Print)*42b. RECEIVED AT *(Location)*42c. DATE RECEIVED *(MM/DD/YYYY)*

42d. TOTAL CONTAINERS

SECTION B – CONTINUATION

Solicitation - 140A2326Q0134

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Quotes are being requested and a separate written solicitation will not be issued. Solicitation number 140A2326Q0134 is issued as a Request for Quote for the purchase of Propane.

This acquisition is set-aside for Indian Economic Enterprise small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

NAICS Code: 324110 - Petroleum Refineries
Size: 1,500 – in number of employees
Product Code: 9130 - Liquid Propellants and Fuels, Petroleum Base
Set Aside: 100% Indian Small Business Economic Enterprise

1. **CONTRACT TYPE** Firm Fixed Price

A firm-fixed-price contract provides for a price that is not subject to any adjustment on the basis of the contractor's cost experience in performing the contract.

It is expressly agreed and understood that this is a nonpersonal service contract under which the contractor is an independent contractor. The Government may evaluate the quality of professional and administrative services provided but retains no control over the contractor, its employees or agents. The contractor shall indemnify the Government for any liability producing act or omission by the contractor, its employees and agents occurring during contract performance. The contractor shall maintain liability insurance, in a coverage amount acceptable to the contracting officer, which is not less than the amount normally prevailing within the local community for the specialty concerned. The contractor is required to ensure that its subcontracts for services include the maintenance of liability insurance.

2. **DELIVERY TERMS** FOB Destination

3. **DELIVERY LOCATION**

Pine Ridge School
101 Thorpe Circle
Pine Ridge, SD 57770

4. **PAYMENT TERMS** (Accelerated Payment) Net 15 Payment within 15 days in arrears upon delivery of goods/services, after inspection & acceptance, and receipt of a proper invoice.

5. **PERFORMANCE PERIOD:** 09/01/2026 – 08/31/2027

6. **PRICE**

The price is an all-inclusive price. All-inclusive is defined as all costs/expenses which include but are not limited to Federal/State/Local **Taxes**, TERO fees, Delivery, Shipping & Handling, Goods, Service, Labor, and all other fees necessary to complete the work.

Description	Quantity in Gallons	Unit Price	Total Price
Propane	70,000	\$	\$

7. **INVOICE INSTRUCTIONS**

Invoices shall be submitted electronically through the U.S. Department of the Treasury's Internet Payment Platform System (IPP). The IPP website address is: <https://www.ipp.gov> Contractor assistance with technical support can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

At a minimum a proper invoice shall include:

- Name and address of the Contractor;
- Invoice date and number;
- BIE Contract number:

SECTION B – CONTINUATION

Solicitation - 140A2326Q0134

- Description, quantity, unit of measure, unit price and extended price of the items delivered.
- Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading.
- Terms of any discount for prompt payment offered;
- Name and address of official to whom payment is to be sent;
- Name, title, e-mail and phone number of person to notify in event of defective invoice; and
- Taxpayer Identification Number.

Additional Invoice Requirements:

- a. The Contractor shall attach an itemized invoice to each IPP payment request.
- b. Improper invoices may result in an invoice rejection. The Contractor shall promptly correct invoices upon notice.

8. POINTS OF CONTACT

Government	Contractor

9. REPORTING MATTERS INVOLVING FRAUD, MISMANAGEMENT, WASTE AND ABUSE

Anyone who becomes aware of the existence or apparent existence of fraud, waste, and abuse in DOI funded programs is encouraged to report such matters to the DOI Inspector General's Office in writing or on the Inspector General's Hotline. The toll-free number is 1-800-424-5081. All telephone calls will be handled confidentially. One may also fill out an online form at <http://www.doi.gov/oig/index.cfm>. Additionally, the IG may be contacted through its mailing address:

U.S. Department of the Interior
Office of Inspector General
1849 C Street NW - Mail Stop 4428
Washington, D.C. 20240

SECTION C – CLAUSES
Solicitation 140A2326Q0134

1. DEPARTMENT OF THE INTERIOR ACQUISITION REGULATION / CLAUSES

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/diar/part-1452-solicitation-provisions-and-contract-clauses>

(End of clause)

Clause	Title	Date
Incorporated by Reference -		
1452.280-2	Notice of Indian Economic Enterprise set-aside.	Feb 2021
1452.280-3	Indian Economic Enterprise subcontracting limitations.	Feb 2021

Incorporated in Full Text -

1452.201-70 Authorities and delegations. (Sep 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk. (End of clause)

1452.228-70 Liability Insurance. (Jul 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

\$1,000,000.00 each person

\$1,000,000.00 each occurrence

\$1,000,000.00 property damage

SECTION C – CLAUSES
Solicitation 140A2326Q0134

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number, and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work. (End of clause)

2. FEDERAL ACQUISITION REGULATION / CLAUSES

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): FAR Overhaul <https://www.acquisition.gov/far-overhaul> (End of clause)

Incorporated by Reference –

Clause	Title	Date
52.203-17	Contractor Employee Whistleblower Rights	Nov 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	Jan 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Nov 2015
52.212-4	Terms and Conditions—Commercial Products and Commercial Services	Nov 2023
52.219-33	Nonmanufacturer Rule	Sep 2021
52.222-3	Convict Labor	Jun 2003
52.222-19	Child Labor—Cooperation with Authorities and Remedies	Mar 2026
52.222-36	Equal Opportunity for Workers with Disabilities0	Jun 2020
52.222-50	Combating Trafficking in Persons	Oct 2025
52.222-54	Employment Eligibility Verification	Jan 2025
52.223-23	Sustainable Products	May 2024
52.225-1	Buy American-Supplies	Oct 2022
52.225-3	Buy American-Free Trade Agreements-Israeli Trade Act	Nov 2023
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
52.232-18	Availability of Funds.	Apr 1984
52.232-33	Payment by Electronic Funds Transfer—System for Award Management	Oct 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Mar 2023
52.233-3	Protest After Award	Aug 1996
52.233-4	Applicable Law for Breach of Contract Claim	Oct 2004
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984
52.240-90	Security Prohibitions and Exclusions Representations and Certifications	Mar 2026
52.240-91	Security Prohibitions and Exclusions	Mar 2026
52.240-93	Basic Safeguarding of Covered Contractor Information Systems	Mar 2026
52.247-34	F.o.b. Destination.	Jan 1991

SECTION D – DOCUMENTS, EXHIBITS AND ATTACHMENTS
Solicitation - 140A2326Q0134

Attachment	Pages
Statement of Work	01-pages
IA Indian Economic Enterprise Representation	01-page

Fuel Blend: Liquid Propane with Methyl Mercaptan Blend

Applicable Tanks-

<u>1,000-gallon tanks:</u>	<u>Building</u>
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High School	341
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Registrar	345
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Bus Garage/Warehouse	
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Dormitory North Tank	347
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Dormitory South Tank	347
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Elem Tin Gym	333
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Maintenance Office	1668
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<u>500-gallon tanks:</u>	<u>Building</u>
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Cafeteria - 500g	303
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Log Cabin - 500g	202
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Delivery

Fuel deliveries shall be made during regular school hours from Monday to Friday, between 8:00 am and 4:30 pm, excluding federal holidays. The delivery driver must contact facilities management to provide notice of the estimated arrival time. Upon arrival, the driver is required to check in with facilities management before refueling tanks to verify delivery paperwork and obtain approval to proceed.

Fuel shall be provided on a bi-weekly basis and as needed, based on fuel levels.

At no point shall the tanks be allowed to become dangerously low and/or run out of fuel.

20%, or less, is dangerously low. Low levels cause kitchen equipment to malfunction

Monitoring

The contractor shall install electronic tank monitoring devices and independently monitor the tank levels.

Spills, Cleanup, Prevention, and Reporting

The Contractor shall be responsible for preventing and cleanup of propane spills that occur as a result of their work or activities. This includes following safety guidelines for transporting, storing, and use, as outlined by OSHA.

Cleanup: If a spill occurs, the contractor is responsible for the cleanup, which must meet regulatory requirements.

Reporting: The Contractor shall report all spills to BIE Facilities Management.

The Contractor shall report spills to applicable authorities as required by law, such as the EPA, and in some cases, state and local authorities, especially if the spill meets or exceeds reportable quantities of hazardous substances or impacts waterways.

Liability: The Contractor shall be held liable for the costs of cleanup, containment, and damages resulting from a release related to their activities. This extends to actions taken by subcontractors.

Insurance: Contractors shall possess and maintain liability insurance to protect themselves from pollution liability, including third-party bodily injury, property damage, cleanup, and defense costs arising from their operations, transportation, or disposal activities.

Leaks. The Contractor who is working on a propane system and discovers a leak shall take immediate action by notifying BIE Facilities Management. If the propane company detects a leak during delivery, they must stop operations, isolate the area, inform BIE, document the incident, and advise BIE on emergency procedures.

The government is required to conduct leak tests after a leak is discovered or suspected leak and repair the leak, prior to allowing continued delivery. Leak tests and applicable costs are not currently covered under this contract and will be handled separately on a case-by-case basis. BIE Facilities Management shall notify the Contracting Officer promptly and obtain applicable approvals prior to scheduling and conducting leak tests.

SECTION E – PROVISIONS
Solicitation 140A2326Q0134

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): FAR Overhaul <https://www.acquisition.gov/far-overhaul> (End of provision)

Incorporated by Reference –

Clause	Title	Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	(Jan 2017)
52.204-7	System for Award Management—Registration	(Nov 2024)
52.209-2,	Prohibition on Contracting with Inverted Domestic Corporations—Representation.	(Nov 2015)
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.	(Feb 2016)
52.212-1	Instructions to Offerors—Commercial Products and Commercial Services.	(Sep 2023)
52.222-18	Certification Regarding Knowledge of Child Labor for Listed End Products	(Feb 2021)

Incorporated in Full Text –

Clause	Title	Date
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52.225-2 Buy American Certificate (OCT 2022)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.

(2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(4) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” and “foreign end product” are defined in the clause of this solicitation entitled “Buy American-Supplies.”

(b) Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____

(b)[List as necessary]

(c) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

SECTION E – PROVISIONS
Solicitation 140A2326Q0134

52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2023)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) or (c)(1) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(2) of this provision contains a critical component.

(2) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin
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[List as necessary]

(c)(1) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (b) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Other Foreign End Products:

Line Item No.	Country of origin
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[List as necessary]

(2) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

52.233-2 Service of Protest Department of the Interior (JUL 1996) (Deviation)

A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

Bureau of Indian Education
Attn: Leah Azure
1011 Indian School Rd NW
Albuquerque, NM 87104
Or, email leahr.azure@bie.edu

SECTION E – PROVISIONS
Solicitation 140A2326Q0134

2. DEPARTMENT OF THE INTERIOR ACQUISITION REGULATION (DIAR) PROVISIONS

Clause	Title	Date
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Incorporated by Reference –

1452.280-1 Notice of Indian small business economic enterprise set-aside. (Feb 2021)

1452.280-4 Indian Economic Enterprise representation. (Feb 2021)

INSTRUCTIONS

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services.

Addendum-

- Prospective Contractors shall assume that the government “has no prior knowledge” of their capabilities and experience and will base its evaluation on the information presented in each quote. Simply stating that the company will perform in accordance with the statement of work and/or providing a copy of the solicitation in response to the solicitation is considered unacceptable. The quote may be determined nonresponsive and removed from further consideration. The contractor shall follow the solicitation instructions in this section, 52.212-1 Instructions to Offerors—Commercial Products and Commercial Services, including the addendum below, and clearly address the evaluation criteria, Evaluation, on its own document. Failure to comply with all instructions and address the evaluation factors may result in the quote being found nonresponsive and/or technically unacceptable and removal from consideration.
- **Price.**
The contractor shall submit an all-inclusive firm fixed price quote in response to this solicitation. All-inclusive is defined as all costs/expenses which include but are not limited to Federal/State/Local **Taxes, TERO** fees, Delivery, Shipping & Handling, Goods, Service, Labor, and all other fees necessary to complete the work. The quote may be determined unacceptable and removed from further consideration of the quote contains incomplete pricing or verbiage which indicates that price is subject to change after award. Complete and submit Section B – Price.
- **Set-aside Compliance.**
The contractor shall complete and submit with the quote the DIAR IEE representation, 1452.280-4 Indian Economic Enterprise Representation (FEB 2021), included in this solicitation. Incomplete information, alternate forms or substitutes shall not be accepted. Prospective contractors who do not qualify under the solicitation set aside will be removed from further consideration.
- The contractor shall identify the company Tax ID, Cage Code, UEI number in the quote.
- The contractor shall include a current point of contact information which includes first name, last name, e-mail, telephone number, and physical mailing address.
- The contractor shall acknowledge all amendments.
- The contractor shall be properly registered in SAM.gov to include small business status.
- The contractor shall complete the provisions, FAR & DIAR, and submit with quote. (Section E)
Exception, completion of FAR provisions is not necessary if the provisions are already complete & listed in the company SAM.gov registration, representations, and certifications section.
- The Government shall not be liable for any fees/costs incurred by quotation preparation. Preparing and submitting a quote in response to this solicitation is strictly voluntary.
- E-mail attachments shall be in PDF format and compatible with Microsoft Office software. NO zipped files permitted.
- All inquiries, questions, quotations, & amendments shall be submitted to: leahr.azure@bic.edu (electronic only)

****The government intends to make an award within 30 days from the date specified for receipt of quotes,**
unless another time period is specified in an addendum to the solicitation.**

QUOTE EVALUATION

The contract will be awarded to the lowest priced acceptable quote. Evaluation will begin with the lowest priced quote; if it is deemed unacceptable, the next lowest will be considered, continuing this process until an acceptable quote is found. The Government plans to make an award without discussions or negotiations, so quoters should ensure that their initial submission reflects the best technical and pricing terms available. The Government retains the right to clarify aspects of any quote and may choose not to award a contract, based on quote quality and funding availability for this requirement.

The following factors shall be used to evaluate quotes:

Price.

Receipt of an all-inclusive firm fixed price quote at a fair and reasonable price.

Set-Aside Compliance.

Receipt of a complete IEE representation form and qualifies under the solicitation set aside.

Capability.

The quote confirms the ability to provide propane on a bi-weekly basis and as needed.

The quote confirms the ability to independently monitor propane tank levels to include electronic tank monitors.

Indian Affairs Indian Economic Enterprise Representation Form

Solicitation/Sources Sought/RFI Number:	140A2326Q0134
Project Title:	Propane
Date of Form Submission:	

In accordance with 25 U.S.C. 47 of the Buy Indian Act, the signature in the Offeror Section below constitutes self-certification that the Offeror meets the definition of an "Indian Economic Enterprise (IEE)" as defined in Department of the Interior Acquisition Regulation (DIAR) Part 1480 titled, "Acquisitions Under the Buy Indian Act."

The enterprise must meet the requirements of (i) through (iii) throughout the following time periods:

- (1) At the time an offer is made in response to a written solicitation;
- (2) At the time of contract award; and,
- (3) During the full term of the contract.

Contracting Officers may require additional information or documentation of eligibility at any time in the acquisition life-cycle, including pre-award/proposal evaluation.

Any false or misleading information submitted by an enterprise when submitting an offer in consideration for an award set aside under the Buy Indian Act is a violation of the law punishable under 18 U.S.C. 1001. False claims submitted as part of contract performance are subject to the penalties enumerated in 31 U.S.C. 3729 to 3731 and 18 U.S.C. 287.

OFFEROR REPRESENTATION

By filling out the information below, the Offeror represents that it does meet the definition of an "Indian Economic Enterprise" as defined in DIAR Part 1480.

Name of Federally Recognized Tribal Entity:

Name of the 51% (or greater) Owner of the IEE Firm:

Legal Business Name:

Certifying Signature:

Unique Entity ID (UEI):

Printed Name: